



POLICE DEPARTMENT

January 14, 2011

MEMORANDUM FOR: Police Commissioner

Re: Sergeant Anthony Acosta
Tax Registry No. 895154
Intelligence Division
Disciplinary Case Nos. 85738/09 & 85853/09

The above-named member of the Department appeared before me on July 6,
September 24, and November 5, 2010 charged with the following:

Disciplinary Case No. 85738/09

1. Said Sergeant Anthony Acosta, while assigned to Intelligence Division, while off duty, on or about December 17, 2008, in the vicinity of 1490 1st Avenue, New York County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that after having been involved in an unusual police incident, did fail and neglect to immediately and properly identify himself as a member of service to responding police officers. *(As amended)*

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
P.G. 212-33, Page 2 – CONFRONTATION SITUATIONS

2. Said Sergeant Anthony Acosta, assigned as indicated in Specification #1, while off-duty, on or about the date and location in Specification #1, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said sergeant improperly interfered with on duty responding members of the service investigating a police incident.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

Disciplinary Case No. 85853/09

1. Said Sergeant Anthony Acosta, while assigned to Intelligence Division, while off duty, on or about December 17, 2008, in the vicinity of 1490 1st Avenue, New York County, wrongfully completed the Investigating Supervisor sections "A" and "B" of a

Line of Duty Injury Report for injuries that he allegedly sustained during a police incident.

P.G. 205-05, Page 1, Paragraphs A and B – LINE OF DUTY INJURY OR
DEATH OCCURRING WITHIN
THE CITY

2. Said Sergeant Anthony Acosta, assigned as indicated in Specification #1, on or about and between December 18, 2008 and January 15, 2009, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said sergeant improperly prepared his own Witness Statement Injury to Member of the Department forms, and submitted said forms to several probationary police officers to sign.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

The Department was represented by Hiram Lopez, Esq., Department Advocate's Office, and the Respondent was represented by Richard Murray, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

In Disciplinary Case No. 85738/09 the Respondent is found Guilty of Specification No. 1 and Not Guilty of Specification No. 2. In Disciplinary Case No. 85853/09 the Respondent is found Not Guilty of Specification No. 1 and Guilty of Specification No. 2.

SUMMARY OF EVIDENCE PRESENTEDThe Department's Case

The Department called Police Officer Michael Mazzilli, Police Officer Nicholas Monello and Sergeant Salvatore Romano as witnesses.

Police Officer Michael Mazzilli

Mazzilli is assigned to the 19 Precinct where he has worked for approximately twelve years. His previous assignments include the Property Clerk Division, and Midtown South Precinct where he worked for approximately seven years.

Mazzilli testified that on December 17, 2008 at approximately 11:30 p.m. he heard a 911 call of a "10-34", assault in progress, on his radio. He stated that he, along with the 19 Precinct's anti-crime unit, responded to the vicinity of First Avenue between 77 and 78 streets. His assigned partner for the night was still inside the precinct. He said he was familiar with the address because it is the location of a bar called the Vudu Lounge, and a large number of altercations, disputes and assaults have taken place there.

Mazzilli and the anti-crime unit arrived at the location around the same time. Mazzilli further testified that he knew the supervisor of the anti-crime unit, Sergeant Santoli, and the officer accompanying the sergeant, Police Officer Metaxis. In addition, he stated that the first thing he observed when he got to the scene was a "large commotion, a lot of vehicle traffic and crowds of people all over the west side of the street." Mazzilli said that Santoli and Metaxis were on his left side talking to someone and all he heard was an unknown person yelling "they are in that car" and saw him pointing to a car on the west side of the street. Mazzilli and the anti-crime officers then

proceeded to stop the vehicle. Moreover, Mazzilli said his main focus was to watch the five or six passengers in the car and to make sure the anti-crime officers were not in any danger.

Mazzilli said he was approximately ten to twelve feet behind the vehicle trying to monitor the activities of the passengers when he felt someone grabbing and yanking his right arm and saying something that he was unable to make out. Mazzilli further stated this person, identified as the Respondent, grabbed his arm about three or four times. He said that every time the Respondent grabbed him, he moved his hand away and told him to step back as he kept his focus on the vehicle. The Respondent still had not identified himself as a uniformed member of the service. Once Mazzilli was satisfied that the anti-crime officers were no longer in danger, he turned around, grabbed the Respondent's arm and said, "What's your problem?" Further, Mazzilli said he was going to issue the Respondent a summons for disorderly conduct or arrest him depending on the situation.

Mazzilli said that as he grabbed the Respondent, the Respondent fell back, tripped over Police Officer Monello, who was standing directly behind the Respondent, and fell to the ground. After Mazzilli and the Respondent fell to the ground, Mazzilli, along with other unidentified officers attempted to handcuff the Respondent. One of the Respondent's hands was tucked under his stomach and the officers had a difficult time handcuffing him but eventually both hands were handcuffed.

Once handcuffed, Mazzilli said he stood the Respondent up and placed him against a car. It was at that moment when the Respondent said "I'm on the job, I'm on the job." Mazzilli then "patted" the Respondent for his firearm and shield. The Respondent was not carrying his firearm or his shield. Mazzilli then recovered the

Respondent's wallet and found a New York City Police Department sergeant's identification card.

After verifying that the Respondent was a uniformed member of the service Mazzilli walked over to his supervisor, Sergeant Walsh, the patrol supervisor for the night, and informed him that the Respondent was a uniformed member of the service and he was handcuffed. Sergeant Walsh then directed Mazzilli to remove the handcuffs immediately. Further, after the handcuffs were removed, the Respondent was taken back to the 19 Precinct in the anti-crime vehicle. Mazzilli said this was the only contact he had with the Respondent.

On cross-examination Mazzilli stated he was working a "midnight tour," 2315 by 0750. He stated that the "assault in progress" job was assigned to the anti-crime unit. He also stated that he did not have any contact with Santoli at any point during the day. He further stated that he did not see the anti-crime unit leave the precinct to answer the job, but that he heard them "pick it up" on his Department radio. He said he could not recall if he notified Central Dispatch that he picked up the assault-in-progress job.

Mazzilli said his car was directly behind the anti-crime SUV and he was driving down 78 Street and turned onto First Avenue and parked in the middle of the street facing 77 Street on First Avenue. He said there were many cars double parked and traffic was moving very slowly, and once he and the anti-crime vehicle got there, traffic slowed down even more. He further testified the anti-crime SUV was unmarked and he was not sure if it was gold or gray in color.

Mazzilli stated that before the altercation with the Respondent took place, he and the anti-crime unit had stopped a vehicle related to the assault-in-progress job. This was

the same vehicle the unidentified complainant was referring to when he was yelling "they are getting away." In that vehicle, Mazzilli testified, were four to five plainclothes officers belonging to the Impact Response Team ("IRT"). Mazzilli also said he had seen one of the IRT members show his shield from the passenger side of the vehicle. Mazzilli was standing ten to 12 feet to the rear of the IRT vehicle. He said he could not recall where Santoli was standing, but said that Metaxis was standing by the passenger side of the car.

Mazzilli further stated that he does not know who directed the Respondent, after his handcuffs were removed, to be taken to the anti-crime SUV, but said that it may have been Lieutenant Rooney because he was the ranking officer at the scene. Mazzilli recalled that he removed the Respondent's handcuffs at the direction of Sergeant Walsh, the patrol supervisor for the evening. Mazzilli stated the anti-crime sergeant had his weapon drawn at the IRT vehicle but did not recall if the anti-crime sergeant asked the individuals in the car to step out. He stated that his confrontation with the Respondent occurred after the car stop.

Mazzilli agreed that he did not "consciously" bring the Respondent to the ground and he was not assisted by anyone else in doing so. He did, however, say that Monello was standing directly behind the Respondent and the Respondent, when pushed back, tripped over Monello. Mazzilli and Monello have worked together for at least three to four years but have never socialized outside of work. Mazzilli stated that he is about 5 feet 11 inches tall and weighs about 240 pounds. Monello is approximately 5 feet 4 inches tall and weighs 150 pounds. Mazzilli said he did not see Monello until after they had fallen to the ground. Monello was the first one to fall, then the Respondent fell on

top of Monello, and that's when Mazzilli got on top of the Respondent and attempted to handcuff him. Mazzilli said he did not hear the Respondent say he was "on the job" while the Respondent was being handcuffed. Mazzilli stated that in addition to Monello, Police Officers Vacarr and Leier also assisted in handcuffing the Respondent.

Mazzilli stated that he used one pair of handcuffs on the Respondent. After the Respondent was handcuffed he was placed against a car and searched. Mazzilli proceeded to search his waist area and pockets. In the Respondent's back right pocket, Mazzilli recovered a wallet containing the Respondent's police identification card. This was the first time, Mazzilli said, he learned that the Respondent was a uniformed member of the service. At this point the entire block was shut down and traffic was at a stand still. Mazzilli said that he could not remember if it was him or another officer that removed the Respondents handcuffs.

Mazzilli stated that moments before the altercation he felt "an individual pulling on my shirt saying something." Mazzilli said he kept trying to push that person away and "telling him stand back while I was trying to keep eye contact on the car." He said he was wearing his uniform shirt on this day. He further said that his shirt was "tugged" rather than pulled and he agreed that the pressure of the tug was not enough to physically move him. He also said as he was being tugged, he "yelled" at the person to "stand back". Mazzilli agreed there was a lot of noise from the surrounding traffic.

Mazzilli said he knows that Police Officers Micelli and Olsen are "anti-crime personnel" but does not know if they were actually at the scene.

Police Officer Nicholas Monello

Monello is assigned to the 19 Precinct where he has worked for approximately three years. He is assigned to uniformed patrol duty.

Monello testified that on December 17, 2008 he was assigned to the 19 Precinct and was performing uniformed patrol duties in a marked Radio Motor Patrol ("RMP"). He said he heard a "10-34" (assault in progress) over his radio around the vicinity of First Avenue between 77 and 78 Streets. He stated he arrived there with his partner, Police Officer Miguel Cruz. They were the last police officers to arrive on the scene and parked their RMP approximately 30 feet from where Mazzilli was standing. Upon arriving at the scene, Monello stated he saw Mazzilli talking to the Respondent. In addition, Mazzilli says, he saw the Respondent grab Mazzilli's arm as if he was trying to get "his attention by grabbing his arm." He also said the Respondent was "flailing" his arms. Cruz went the other way while Monello went to provide back-up for Mazzilli because he was by himself. Monello positioned himself directly behind the Respondent while Mazzilli was talking to the Respondent. Mazzilli stated he did see nor hear the Respondent identify himself as a member of the service. Monello said he was behind the Respondent when "Mazzilli went to take the defendant (Respondent) down." Mazzilli and the Respondent fell on top of Monello. Monello assisted Mazzilli with handcuffing the Respondent.

On cross-examination Monello stated as he approached the 77 Street and First Avenue he noticed many police vehicles with their lights on. He parked his RMP approximately 30 feet from where Mazzilli was standing. He said there were several marked RMPs on the east side of the street but does not recall seeing any unmarked SUVs. He said he observed Mazzilli talking to the Respondent and that the Respondent's

“hands were up a couple of times.” As Monello was “jogging” towards Mazzilli, Monello noticed the Respondent “tugging on Mazzilli two or three times” but was not sure which arm he was tugging on. Monello said he could not make out what was being said. Monello stated that once he got close enough to the Respondent, he positioned himself behind him. Monello was unable to see what Mazzilli was doing, and all he saw was the Respondent’s back and said “before I know it, I am on my back, I am on the floor with the defendant (Respondent) and Officer Mazzilli.” He said the Respondent “tripped” over him. He also said he assisted Mazzilli in handcuffing the Respondent by “trying to restrain one of his arms”. He further stated he did not hear the Respondent identify himself as a member of the service nor did he hear the Respondent complain of a bad shoulder. Monello acknowledged there were many police officers on the scene and none of them were taking any “violent actions” against anyone. He said after he assisted Mazzilli with handcuffing the Respondent he went back to his RMP and resumed patrol. Monello acknowledged he did not see any supervisors or anti crime officers on the scene before leaving. Monello also acknowledged that on the morning of December 18, 2008 he was subject to an official Department interview.

Sergeant Salvatore Romano

Romano is assigned to the Chief of Internal Affairs Bureau Office where he has worked on and off since 2005. Romano testified that on or about March 20, 2009 he was assigned to look into a discrepancy that took place on December 17, 2008 involving a Line of Duty Injury Report that resulted from an incident at the Vudu Lounge. Romano said this case was originally assigned to the Deputy Commissioner of Intelligence

Investigations Unit. Romano's first step was to review the case and then review all official Department interview hearings conducted by Manhattan North Investigations Unit. He compared the report and the two witness statements with the Department interview and found discrepancies with the witness statements during the Department interview and the witness statements in the report. Romano conducted official Department interviews with the Respondent, Mazzilli, as well as Officers Raymond Curbelo and Jeremias Torres, who were probationary officers at the scene of the incident.

In his interview the Respondent acknowledged that he had filled out "parts A, B and C" of the Line of Duty Injury Report as well as the witness statement forms. The Respondent typed up all of these documents. He did not receive anything in writing from the witnesses before typing their testimony. The Respondent said he gave the forms to the witnesses to sign and then told them to inform him of any discrepancies in the testimony.

Romano stated that he conducted an official Department interview with Torres on April 23, 2010, Torres told him that, "Sergeant Acosta informed the unidentified police officer (Mazzilli) that he (Respondent) was a sergeant and that they, meaning him and other police officers that were involved in the car stop were on the job." In addition, Torres was presented with a copy of a witness statement, injury to member of the Department form, which Torres said he had never seen before. Torres also said the Respondent never told him to prepare the form so that there was no form actually prepared by Torres.

Romano stated that Curbelo told him that he (Curbelo) had been the subject of the car stop, during which he heard an unidentified man yelling, "I'm a cop, I'm a cop".

Curbelo also stated he did not have any recollection of the Respondent being handcuffed. In addition, Romano testified that Curbelo's story was inconsistent with what he had written on the Witness Statement form. [The Department entered the Respondents Line of Duty Injury Report into evidence as Department's Exhibit (DX) 1. DX 2A is Espinal's Witness Statement. DX 2B is a Witness Statement signed by Police Officer Rodriguez.

On cross-examination Romano stated that Sergeant Mulvey was amongst one of the individuals that he interviewed. Mulvey was the Respondent's union delegate at the 19 Precinct. In Romano's interview with Mulvey, Mulvey stated that the Respondent told the commanding officer, Captain Coyne, about his injuries and requested to report line of duty. Romano conducted a telephone interview with Coyne. In Romano's telephone interview with Coyne, Coyne stated that he remembered the Respondent had suffered an injury but could not recall the type of injury. In addition, Coyne also stated he was aware that line-of-duty paperwork was being prepared.

During the interview with the Respondent, Romano learned the Respondent had notified Lieutenant Materi, the Respondent's immediate supervisor. The Respondent immediately notified Materi, while he was at home and off duty, about his line-of-duty injury. In addition, Romano stated the Respondent told Materi he had been "involved by trying to break up a fight between a couple of cops and a cab driver." Moreover, the Respondent told Materi he was trying to disarm the cab driver who was holding a "two-by-four." Romano acknowledged that neither Coyne nor Materi faced any disciplinary charges for failing to complete line-of-duty paperwork.

Romano also acknowledged that six IRT officers had been stopped by the 19 Precinct anti-crime team and other uniformed officers who responded to the scene.

Romano stated he conducted Department interviews with Santoli, who was the anti-crime team supervisor and Officers Metaxis, Rooney, Monello, Olsen and Micelli but he agreed that he did not have any notes reflecting an interview with either Olsen or Micelli.

The Respondent's Case

The Respondent called Police Officer Vladimir Espinal, Sergeant Daniel Mulvey, and Sergeant Cosmo Lubrano as witnesses. The Respondent also testified in his own behalf.

Police Officer Vladimir Espinal

Espinal has been employed by the Department since January 7, 2008. He is currently assigned to the Firearms and Tactics Section. On December 17, 2008 he was assigned to Manhattan North Impact.

Espinal testified that on December 17, 2008 he was at a precinct Christmas party at the Vudu Lounge. He arrived there at approximately 8:00 p.m. and left at approximately 11:30 p.m. Espinal arrived there with Officer Rodriguez and left with officers Torres, Curbelo and Rivera. As Espinal and the other officers were driving out of their parking space, they were stopped by plainclothes police officers. They were all asked to step out of the vehicle and to place their hands on top of the trunk. Espinal was facing northbound and the anti-crime officers were in front of them.

Espinal testified he did not know the Respondent prior to this incident. While he had seen the Respondent before, he did not know the Respondent's position in the command. Espinal stated he saw the Respondent coming out of the Vudu Lounge,

crossing the street, and walking towards where he was standing with his hands on the trunk. Espinal said he heard the Respondent say, "These guys are ok, they are on the job, they are cops. I am on the job, I am a sergeant in the 30. I am on the job." Espinal said he was directing these comments to the uniformed officer standing behind him (previously identified as Mazzilli). He stated the uniformed officers were standing 30 to 40 feet behind him. He further stated that he did not see any confrontation between the Respondent and any uniformed officers. He said there was a lot of traffic and a lot of noise due to the arrival of many more police officers.

Espinal stated that he was escorted to the 19 Precinct by uniformed officers. When he got to the precinct he learned there had been an incident with the Respondent. He was in the muster room when the Respondent walked in. Espinal testified he saw a couple of bruises on the Respondent's elbow. Espinal was released from the precinct after an official Department interview had been conducted.

Espinal testified the next time he saw the Respondent was on December 23, 2008. The Respondent called Espinal on the telephone and asked him to sign some documents. Espinal was at the 23 Precinct station house processing an arrest. The Respondent gave Espinal the Witness Statement form and asked him to sign it. Espinal's encounter with the Respondent lasted approximately three minutes. Espinal signed the document by the 23 Precinct desk. There were many supervisors present at the time.

On cross-examination Espinal reaffirmed that he had attended an IRT holiday party on the evening of December 17, 2008. The party was about over when he left at 11:30 pm. Espinal said there were between 50 and 100 people at the party. These included officers, their families and other members. He said there was a lot of noise

including noise from other officers arriving. He said it was a busy note with a lot of confusion. He agreed that he was asked to get out of the car by anti-crime officers. He said they took out their identification cards and identified themselves. He did not have his shield with him. He was asked to place his hands on the vehicle. He again asserted that he heard the Respondent say "These guys are okay. They're cops. They're cops, I'm a cop. I'm a sergeant in the 30." He asserted that the Respondent said this while walking over to the uniformed officers.

He said that the officers stopping the car were anti-crime, not uniformed officers. He said the uniformed officers were about 30 feet away from him. Espinal stated the Respondent was walking towards him and the other officers in the van when he turned and walked toward the uniformed officers. When asked when it was that he heard the statement Espinal said, "As he is getting closer, about ten feet from us, then he turned his attention towards the cops." Espinal stated that the Respondent was approaching the officers diagonally and not from behind.

Espinal did not know the Respondent before this incident but he did know that he was a member of the service and a sergeant before the incident. He did not know his "position in the Department" but now knows he worked for the Intelligence Division. He stated that the Respondent contacted him on December 23, and they met at the 23 Precinct and that was when the Respondent gave him the Witness Statement.

Going back to the incident Espinal asserted that he did not witness when the Respondent was handcuffed nor did he witness him at all on the ground. He did not observe any physicality or struggle between the Respondent and the uniformed officers. Looking at the Witness Statement (DX 2A), he agreed that the statement said that he had

witnessed the Respondent being handcuffed. He did not hear Mazzilli or any other officer make any statement to the Respondent. He agreed that the Witness Statement does say that he heard statements made by Mazzilli. He agreed that he had signed the form but that he did not read it. He stated that he signed it "because Sergeant Acosta (the Respondent) told me to sign it." He agreed that he felt pressured to sign it explaining, "Because he's a sergeant and I'm just a cop."

On questioning by the Court Espinal agreed that the Witness Statement was presented to him all typed up. He stated that when the plainclothes officers approached the car he knew they were officers because they had their badges outside their shirts. He said that when the Respondent approached the scene he verbally identified himself as an officer but he did not recall if he had a badge out.

On redirect examination Espinal stated that the Respondent did not give him an order to sign the Witness Statement. Espinal stated, "He just told me I needed to sign this." Espinal asked him what it was and the Respondent, he said told him that it was "just basically what happened on that day." Espinal agreed that the Respondent did not make any threats to get him to sign the statement. He said he did not know it was a witness statement and he did not complain to anyone. He agreed that this was the first time he had signed a witness statement and that there was nothing that the Respondent said that created in his mind any pressure to sign. He agreed that the Respondent did not tell him not to read the statement.

On recross-examination Espinal agreed that he had just denied that the Respondent verbally told him that he must sign but he agreed that he also said he felt pressured to sign. When asked to explain Espinal stated: "Because he was telling us you

guys need to sign this. We kept asking him what it was. He was saying it was just a brief statement on what happened on that day.” Espinal said that when the Respondent said he needed to sign it he understood that to mean that he needed to sign it. He did not know what would happen if he did not sign.

Explaining what he meant earlier when he said he felt pressured because the Respondent was a sergeant and he was an officer, Espinal stated: “We follow orders.” He agreed that the Respondent never actually used the word “order” but he still felt that he was pressured.

Sergeant Daniel Mulvey

Mulvey has been a police officer for a little over 23 years, having been appointed in July 1987. He started in NSU 6 in Manhattan; he then went to the 34 Precinct for nine years then to the 19 Precinct Detective Squad. He was promoted to sergeant about 13 years ago and was assigned to the 20 Precinct. He was assigned to the 30 Precinct from about 1988 to 1997. During his time at the 30 Precinct he performed patrol functions. He agreed that in those years that precinct was a high crime area. In the 20 Precinct he had patrol and anti-crime functions until he got injured a few years ago and since then he has been on the desk.

Mulvey has known the Respondent for about 21 years. He served with him in the 34 Precinct. At that time the Respondent was a union delegate. Mulvey has been a union delegate at the 20 Precinct for about eight years.

On December 17, 2008 Mulvey was working a 10:00 p.m. by 6:30 a.m. tour. At some point he became aware of an incident involving the Respondent. He received a call

that a union representative was needed at the 19 Precinct regarding an off-duty incident. He responded and learned that the Respondent was involved. The Respondent told him that he had attended a Christmas party and after it was over he was sitting in his car on the telephone when he saw something happen with a livery cab. Mulvey said the Respondent told him that the driver got out with a two by four. The Respondent said he identified himself as a police officer and he started struggling with the man who had the two by four.

Mulvey testified that the Respondent had a small laceration and redness to his forehead. He also complained that his neck, back and possibly wrist hurt. Mulvey said he was present for the Respondent's official Department interview at the precinct that night. Medical treatment was discussed and the Respondent received medical treatment.

Mulvey explained that after the official Department interview he and Lubrano prepared line of duty paperwork. Sergeant Lubrano, Mulvey stated, was the Manhattan North trustee. Mulvey said that he and Lubrano agreed that the Respondent had taken police action and that they would prepare the paperwork. Lubrano was going to do part A, which is basically an investigation of the incident. Mulvey said he prepared part B which concurred with Lubrano's findings.

Mulvey identified DX 1 as the Line of Duty Injury Report he prepared. Mulvey explained that he and Lubrano prepared scratch, handwritten copies and that the form was then typed up by someone else, and they signed it.

Mulvey agreed that at some point he was the subject of an official Department interview and that he was questioned about Patrol Guide Section 205-05 regarding line of duty injury or death. He agreed that during the interview it was brought to his attention

that part A of the form is supposed to be filled out by the supervisor. He agreed it was also pointed out that the Patrol Guide also sets forth who can fill out part B. He said that based on his experience the form could be filled out by a sergeant. He also indicated that the procedures done that morning in connection with the Respondent's paperwork were consistent with what he has seen, indicating, "It's been done this way."

Mulvey stated that the Respondent received medical attention at [REDACTED] Hospital. The Respondent was also placed on modified assignment after his official Department interview. Mulvey also testified that he went to the 30 Precinct and recovered the Respondent's weapon.

On cross-examination Mulvey stated that when he was the subject of an official Department interview his status was as a subject. He agreed that he received a schedule "B" Command Discipline as a result of his involvement in this case and was penalized with the loss of five vacation days. He agreed that the reason for this was that the Patrol Guide did not allow him to fill out the line of duty injury form.

Mulvey explained that a scratch is a copy prepared in his own handwriting which is later incorporated into the typewritten report. Mulvey agreed that he signed part B of the line of duty report. He testified that the typewritten report contained more information than his original scratch. He noted that there was the Respondent's version of events and also witness statements. Mulvey said he was not aware of witnesses. He also did not recall using the word "large" to describe the abrasion on the Respondent's forehead. On questioning by the Court it was established that the scratch copy was given to the Respondent to type up the report. Mulvey said he would not describe the injury to the Respondent as a large laceration or he would have gotten medical attention right

away. Mulvey also acknowledged that he signed the form and stated that he agreed with everything above which included Lubrano's version of events.

Sergeant Cosmo Lubrano

Lubrano was appointed to the Department in July 1996. After the Police Academy he was assigned to patrol in the 63 Precinct. He went to anti-crime in 1999 which he did until 2003 when he was promoted to sergeant and assigned to the 23 Precinct. He served there on patrol then as assistant integrity control officer for about a year, then as domestic violence for about two years. He went back to patrol in 2008. In addition he has been the Manhattan North Director for the Sergeant's Benevolent Association (SBA) since October 2007. Before that he was a delegate for about two years from 2005 to 2007.

Among his duties as delegate he is notified if a member is going to any kind of Department hearing and needs representation. He would give the information to the SBA office and they would then assign someone to represent the member. Also he would adjudicate Command Disciplines and minor occurrences within the precinct.

Lubrano testified that he has had experience with Line of Duty Injury Reports. As a supervisor within the precinct he has filled out line-of-duty paperwork for officers who were injured in the course of their duties a few times in the past. He explained that there are three parts to the form, A, B and C. Normally, he said the patrol supervisor would prepare part A. An additional supervisor would prepare part B and the member, if he is capable, would prepare part C. The paperwork, he said, is then forwarded up through command.

Lubrano stated that he has in the past filled out part A on some occasions and part B on other occasions. He believed he was authorized to do this in his capacity as a supervisor. He agreed that he filled out part A of the line-of-duty paperwork for the Respondent in the early morning hours of December 18, 2008.

Lubrano said he became involved in the investigation of the events at the Vudu Lounge when he got a call from the service that the union uses to call for representation of a member during off hours. He believed another sergeant also called him regarding an off-duty incident involving a sergeant at the 19 Precinct.

In response to this communication he drove to that precinct where he met the Respondent. He stayed with the Respondent and was present with him during his official Department interview. Prior to that date he had not met the Respondent.

Lubrano recalled that the Respondent had a bump on his forehead and an abrasion on his cheek. He had some bruising on his forehead as well. Nothing, he noted, that required immediate attention. The Respondent also stated that his back hurt.

Lubrano learned from the Respondent that these injuries were sustained as a result of an incident involving an on-duty member of the service. Lubrano then identified a photograph of the Respondent [Respondent's Exhibit (RX) B] depicting how the Respondent looked at that time.

Lubrano examined the Line of Duty Injury Report prepared in connection with the incident of December 17 – 18, 2008 (DX 1). He testified that he had prepared a handwritten scratch copy and ultimately someone typed up the report. He noted specifically that he did not type it but he did sign it. Lubrano said he prepared part A.

Explaining how he and Mulvey came to prepare the report Lubrano stated:

After Sergeant Acosta was GO-15'd it was some time around 9 o'clock in the morning he had expressed he wanted to go line of duty, there were no supervisors to my recollection still around from the midnight tour that were in any way involved in this incident so rather than burden a supervisor that wasn't around during the incident who really had no knowledge of it we felt it would be – we felt it wouldn't be any issue to do the scratch copy of the Line of Duty Report being that we were informed of the incident, had spoken to Sergeant Acosta and seen his injuries we took it upon ourselves to fill out the paperwork.

While he said he had never done a report while he was off-duty he felt under the circumstances it was appropriate as he was a sergeant. Also it was within his understanding of the Patrol Guide. He has since learned that his actions were not consistent with the guide and he lost five vacation days as part of a command discipline.

He recalled that there was a supervisor, either the commanding officer or the executive officer from the Respondent's command who was present and knew that he was preparing the line of duty injury form. Lubrano recalled that the Respondent's brother took him for medical care.

On cross-examination Lubrano recalled that he filled out a scratch copy based on what the Respondent told him about the incident.

He agreed that he was subject to discipline as a result of completing that report. In the course of that process he was shown the Line of Duty Injury Report and he noted that there were discrepancies between it and what he had prepared in his handwritten scratch. For instance the typewritten report notes a "large" abrasion on the Respondent forehead, but Lubrano did not recall seeing a large abrasion on the Respondent's forehead. He did not recall writing about a "large" abrasion. Nor was he aware of any witnesses that the Respondent claimed had seen the incident.

The Respondent

The Respondent was appointed to the Department on July 5, 1989. In May 2005 he vested out of the Department but he said he was reinstated in June or July 2006. Reviewing his career in the Department the Respondent noted that he was a company sergeant at the Police Academy. After the Police Academy he was assigned to Field Training Unit Number 5 which worked out of the 30 Precinct. They covered Zone 5 which consisted of the 30, 26, 24 and 34 precincts. In August 1990 he was transferred to the 30 Precinct in upper Manhattan. The Respondent explained that the 34 Precinct covered what is now both the 33 and 34 Precincts.

While assigned to the 34 Precinct he was a patrol officer. He also did community policing and street narcotics in uniform. In 1994 when the 33 Precinct opened up he was assigned there and remained until August 2000. In the 33 Precinct he worked street narcotics and anti-crime. He worked street narcotics both in uniform and in plainclothes. In anti-crime he worked in plainclothes.

In August 2000 he was promoted to sergeant and was assigned to the 52 Precinct where initially he was the midnight patrol sergeant. The Respondent stated that a position was created for him as gang sergeant. He then became a Field Training Unit officer. In February or March of 2000 he was assigned to the 41 Precinct where he was the anti-crime sergeant for about two years. He left to go to the 13 Precinct where he also served as the anti-crime sergeant. He was not there very long when he was asked to go to Narcotics Borough Bronx where he served for three or four months when he was assigned back to the 13 Precinct as anti-crime sergeant. In May 2005 he was transferred to the Police Cadet Corps but at that time he had submitted his papers to retire.

The reason for this was that he wanted to go to Iraq as an international police liaison officer. He wanted to go to Iraq to train police officers. He had attempted to get a leave of absence but was unable to do so because it did not fall under any of the available criteria so he retired. His new employer was Dyne Corp International,¹ which was a contractor, but in fact he worked directly for the Department of Justice. He was attached to the military in Iraq. His unit was called CPAC, and although he did not remember what the acronym stood for it was the civilian police force.

Upon completion of his training in El Paso, Texas he was sent to Iraq in July, 2005 where he was assigned to the police academy. He was responsible for vetting the Iraqi police recruits. He was later assigned to the Major Crimes Unit in Baghdad.

He served as a liaison with the military for that unit. When violence started to escalate prior to the election he helped develop a unit to assist with the elections. He was part of a detail of American police officers assigned to work with Iraqi police officers and Iraqi military. The Respondent also noted that directly prior to coming to the Department in 1989 he had served with the United States Marine Corps having started there in 1984. He had been honorably discharged from the Marines in the rank of sergeant.

During his first 16 years with the Department he obtained a Bachelors Degree in Criminal Justice from John Jay College. This occurred in 2004 just before he went to Iraq. He has also obtained a Masters Degree in Public Administration and Emergency Management from John Jay. He began his work on this by taking on-line courses while in Iraq. When he returned he continued his course work at John Jay College, obtaining his degree in 2009.

The Respondent testified that he had received training in how to deal with the

¹ This appears in the transcript as Dime Corp.

dangers related to situations with non-uniform members of the service (MOS) and uniform MOS. He said he received this training when he was in the Street Narcotics Enforcement Unit (SNEU). He said he was trained in drug recognition and on the legal aspects of observing hand to hand transactions. He said he also received plainclothes training which dealt, he said, more with tactics.

When asked again if he had received training in how a member of service in plainclothes should react when confronted with a uniformed member, the Respondent responded:

Yes, that was most of our training was based on that. It's based on confrontation situations between plainclothes officers and uniform officers, also certain scenarios of a plainclothes officer in dealing with a potential individual, subject perpetrator in the streets.

The Respondent testified that prior to December 17, 2008 he had been involved in situations in which he was not in uniform and had encounters with uniformed, on-duty, members of the service. The Respondent recounted:

First one that comes to mind is one day I was an anti-crime officer in the 33 Precinct in plainclothes, a uniform officer we had actually we observed him as he was putting over a foot pursuit that he was involved in. Me and my partner then became involved in a pursuit. I apprehended the subject I had wrestled the subject down to the ground, while I was on the floor trying to gain control of the subject I got jumped. It felt like somebody threw themselves on me and I turned and I looked and it was actually a uniform another uniformed officer, Officer Kabetish. He was trying to handcuff me. Then some point I am looking at him I knew we worked together for years I was his delegate, I pushed him off of me. My partner Sal, because he had his gun in my face, actually my partner Sal apprehends the subject and I deal with the situation with Officer Kabetish.

The Respondent explained that he and Kabetish had been very familiar with each other. He went on to say that the gun was as close to his face as the microphone he was speaking into in the courtroom.²

The Respondent went on to relate another incident in which he had been a uniformed officer and had unknowingly apprehended a federal agent. He explained that they were able to identify him and the situation was resolved.

The Respondent provided another example of a confrontation between uniform and plainclothes officers in which he and his partner were involved as the plainclothed officers:

Me and my partner, Officer Conrad Perry, we responded to a police officer's radio run of an 85. We were assigned to the 33 Precinct but the 85 came over in the 34 Precinct in the vicinity of 186 Street and I remember an officer, I don't remember the exact blocks, I think it was in the 180's, officers are running westbound on one street and we decided to go to the northern street in case the person ran this way we would cut him off in the middle of the block, there was a schoolyard. The uniform officers were chasing the suspect on the south street and we were on the north street and somehow they saw Officer Perry and thought he was part of that and the uniform officers started to chase him and I was behind Perry. I am yelling to the uniform officers that he's a cop, he's a cop, he's a cop, he's a cop and I am telling Perry to stop, not to continue running.

The Respondent provided a further instance in which he was involved in a confrontation with uniformed officers:

Then there was another incident it was on 176 Street and St. Nicholas Avenue. We were in plainclothes, anti-crime we were working a burglary pattern that we had in that area. Officer Perry went to confront a lady that had approached us to buy drugs and I was standing back watching Perry interacting with the lady and I get kicked in

² The Court notes that this distance was a few inches.

the back and I turn around there's a guy there, I thought maybe he thought we were harassing the lady or something so I push him back I take out my shield and I tell him we're police.

Just as I am saying that he pulls up a gun to my face and I grab the gun, as I'm getting ready to wrestle him to the ground someone comes up behind me and says, excuse my language, don't move mother fucker. I turned slightly my head to the voice and as I am turning my head I get hit in the head, I am struck in the head with the pistol of the detective. It turned out they were detectives.

I got struck in the head I fall down to the ground. Later we found out that the lady that approached us to buy drugs was an undercover narcotics officer and the gentlemen that I had grabbed was her ghost. The guy who threw the gun in my face was her ghost and the guy who hit me in the head with the gun was, I guess, his back up.

The Respondent provided yet another example of this type of situation:

Then the other incident was me and Officer Perry working anti-crime, we are getting ready to apprehend the subject that we observed in possession of narcotics. As we are getting ready to grab him I notice some detectives sitting in the van and it was shortly after the incident where I got pistol whipped so I momentarily put myself in a building corner facing them. They are sitting in the car right there and I take out my radio to show that and I take the color of the day off my wrist I wrap it around the radio. I take it and put it in my back pocket to show it intentionally so they can see it and I can continue ghosting my partner Perry, who was getting ready to apprehend this individual.

Just as this is happening Perry goes to take down the guy, he starts to run. Perry grabs him, takes him down. The detectives in the van pull up, they pull out, jump out of their van, whip out their bats, and they go to strike Officer Perry. And I put myself in between Officer Perry and them, and I tell them we're cops, back up, back off, back off.

The Respondent testified that after he was re-instated to the Department in 2006 he received three weeks of training before he was assigned to the 33 Precinct as the anti-crime sergeant. He was there until October 2007 when he went to the 30 Precinct as their field intelligence officer where he tracked and analyzed crime trends. He would try to get that information out to the field. He also was tasked with interviewing individuals who had been arrested and seeing if they had information that can help them such as locating fencing operations or narcotics locations. He indicated that his command is the Intelligence Division. This is the position he now holds and that he held in December 2008.

The Respondent testified that in December 2008 he contemplated retirement. His plan was to go back to Iraq. He planned to submit his retirement papers on May 5 and go back to Iraq on May 11. His retirement plans were interrupted when he was placed on modified assignment on December 18, 2008.

The Respondent stated that he has received over 70 Department medals for various police actions he has taken ranging from arrests to saving a child in a fire to being involved in two police shootings. The Respondent offered in evidence a list of his Department medals (RX C). He has, he says, 48 medals for Excellent Police Duty, 15 medals for Meritorious Police Duty, and five Commendations. He also has a Medal of Valor and one honorable mention. The Respondent also placed in evidence a package of his evaluations from January 2006 to 2010, (RX D).

The Respondent testified that he worked on December 17, 2008 but did not remember the tour. He believed he did a double and worked until six or seven in the evening. After his tour he went over to the restaurant where the Field Intelligence

officers were having a dinner. He stayed there about 45 minutes and then went to the Vudu Lounge where "the IRT guys" were having their holiday party.

The Respondent testified that the Vudu Lounge is located at 1487 First Avenue between 77 and 78 Streets. It is on the west side of First Avenue about mid block, he said. He said that he had no particular reason to go to that party but was waiting for some friends who were still at work and did not get off until later. Also, he noted that he thought it would be a good thing to go to the party because he debriefed their prisoners. He said at the time he was fairly new at the 30 Precinct and he felt he might use the occasion to build relationships with the officers there. He said he was at the party for about three or four hours.

He did not know the exact time he left but he did recall that Captain Pla,³ the commanding officer of the unit, announced that the party was over somewhere between 11:00 and 11:30 pm. The Respondent said he left at 11:00 to 11:15 stating, "I left because I didn't know anybody there so I didn't remain behind talking to anybody."

The Respondent indicated that he had driven to the location and had parked his car almost directly across the street from the Vudu Lounge. When he left the lounge he went to his car and sat in it talking on the telephone while warming the car up. While sitting there he saw in the side door mirror an incident, "I saw somebody get hit by a car on 77 Street and First Avenue. What appeared to me that the person got hit by a car."

The Respondent said he got out of his car and while crossing the street he saw that the individual that he thought had been hit by a car got up and started running north. He then noticed a crowd at the location. He said:

³ Captain Pla was transcribed as "Captain Block" in the trial transcripts.

I figure what I thought happened was I thought the guy got hit by a the car, that car took off, he chased the car then I saw a group of people so I thought these people were assisting in stopping the car, some other people saw it so as I am waiting for traffic to slow down I was in the middle of a street of the block so I could cross the street and go back to my car. Right before I start to cross I look over at that crowd again and I see that incident now turned into a big fight

...I start walking over to the crowd I see Captain Pla on the phone, there is somebody screaming you guys are animals, you guys are animals. I see somebody with a 2 X 4, I grab him, spin him around, I grab the 2 X 4. I am pulling on it, he is trying to pull the 2 X 4 back from me. I tell him at that point I'm a cop and he looks at me strangely then lets go. As he lets go I happen to be pulling and the 2 X 4 ended up striking me on the lower part of my face on my jaw. I took, I mean I got angry, I took the 2 X 4, there was some construction, I threw the 2 X 4 where the construction was because I was still able to assess that the crowd was attacking an individual. I threw the 2 X 4 there, I started to grab people telling them to get out of here.

Then I saw they were trying to attack a gentleman who looked like a male black, there was a yellow taxi there the door was open to the taxi, the back passenger door, I am trying to tell him to get inside the car. I figured as long as he is inside the car nobody could strike him. He is yelling at me telling me no, I am thinking maybe he thinks that I am trying to attack him or do something. I tell him I am a cop, just sit in the car, just sit in the car. And then at the same time I am focusing my attention, making sure that nobody tries to attack him or even hit me by swinging at him and end up hitting me. Police cars started coming at that time.

The Respondent indicated that he was not armed and that he never carries a firearm while off duty. He testified that he was able to control the crowd. The police cars were coming south on First Avenue on the east side of the street and the Respondent said he started to cross over to meet them and tell them what he saw. The Respondent

then corrected himself and said that the police cars were coming northbound on First Avenue. He said they were coming from 78 Street.⁴

The Respondent testified that as he crossed the street he noticed an SUV double parked next to his car. He looked in and determined that there were police officers inside. He did not know these officers who were in plainclothes but he assumed they were from the Narcotics or Gang Units because of the vehicle they were using.

The Respondent said he identified himself to the officers in the SUV. He told them he had been at a holiday party and that a fight had broken out and that he was not sure if cops were involved. The Respondent stated that there were three officers in the car.

The Respondent testified:

As I spoke to them as I am talking to them an officer in uniform with he had his shirt on and I noticed he had a lot of patches so he had time on the job, he walks behind me and he stands maybe three feet to what would be my right as I am facing the anti-crime vehicle, what later turned out to be an anti-crime vehicle.

The Respondent later learned that this was Officer Mazzilli. Continuing with his narrative the Respondent stated:

I had decided to - - I didn't know that the gentlemen in the SUV were from the 19 Precinct so I had decided to go to Officer Mazzilli, I figure he was in uniform, he was from the 19 Precinct so I decided to approach him, let him know I was a cop and let him know what I had seen. At that same time there was a vehicle being stopped in front of him, slightly in front of him. I had approached him to - -

⁴ The Respondent testified that the Vudu Lounge was between 77 and 78 Streets. If the police cars were coming from 78 Street they would have been heading south.

The Respondent then said that the vehicle was already stopped. He said that Mazzilli was three or four feet to the north of him. The vehicle, he said, was 30 or 40 feet north of Mazzilli. The Respondent stated that at the time he saw uniformed officers stop the vehicle but he subsequently learned that anti-crime officers had stopped the vehicle and uniformed officers were walking over. He stated that the anti-crime officers were from a different group than those he had seen in the SUV.

Going back to his narrative of the event the Respondent stated:

I had the conversation with the officers in the SUV. I began to approach Officer Mazzilli from his rear. I tapped on his, it would be his left shoulder, with my right hand. I might have because of instinct or my training, I didn't want him turning around, might have held my hand towards the bottom of his elbow so that way if he does spin around to strike me I would be able to give myself some defense but I touched his elbow, started to tell him that I was a police officer and my next intent was to let him know that I had witnessed what had occurred and that the individuals that attacked an individual were heading northbound on First Avenue.

The Respondent stated that Mazzilli was watching the vehicle stop at the time he went over and made contact with his elbow. The Respondent stated that he did not know at that time who was in the vehicle that had been stopped. Describing what happened after he touched Mazzilli on the shoulder the Respondent testified:

Officer Mazzilli immediately turned around, grabbed my left hand [which] was inside my coat pocket, as I stated earlier, it was very cold that day, that night. He made me turn around, grabbed my left hand that was in the coat pocket and he said, take your hand out of your pocket, take your hand out of your pocket, you know, I got startled. I was, like, what the hell is going on and I actually just being shocked I giggled and that seemed to upset him even more and he started grabbing tight on my wrist, take your hand out, take your hand out. I am like, okay, relax, I'm a cop, I

am on the job. And I start to explain to him he has to let go of my hand because he was pushing my arm into the coat pocket, I assume in an attempt to control my arm and I couldn't pull my arm out of the pocket I couldn't comply with what he was asking me to do so I was telling him all right, you are going to have to let go of my arm, you are pushing it down into the pocket.

Officer Mazzilli began to get rougher with me, more physical. He threw me, threw me up against the hood of my car, my back was thrown up against the hood of my car and at that time I started to explain to him I am a sergeant I am on the job, what are you doing. And he goes he states, excuse my language, I don't give a fuck who you are and he punches me in the upper part of my chest. I end up stepping back and he utilizes some type of what we call an arm bar, taking, manipulating the arm, the elbow of the arm and twisting the arm towards my back. He then threw me down to the ground face first. When I landed I landed towards the - - I landed on my face facing southbound in between my vehicle and the anti-crime SUV.

The Respondent said he did not pass out and recalled being handcuffed on one arm and then hearing Mazzilli tell him to give him his other arm and stop resisting. He said he tried to ask Mazzilli to use two handcuffs because he has a bad shoulder but, he said, Mazzilli just kept telling him to stop resisting. He said in the end he did not know if one handcuff or two was used but he was handcuffed and stood up.

Mazzilli asked him where his identification card was and reached into his back pocket and recovered his wallet. Mazzilli, he said left him standing there, walked away and returned with a sergeant. The sergeant, who had been sitting in the back of the anti-crime vehicle, came back and uncuffed him. He was told to sit in the back seat of the SUV. The Respondent said the sergeant he was referring to was not Santoli. The Respondent said he knew who Santoli was because he had been shown a photo at an official Department interview.

The Respondent said that he asked to speak to Captain Pla who was across the street. He said that at this point "these people" believed he had been involved in the fight. Pla had been there for the whole incident so he said, "I figure they can speak to him and he would explain that I was not involved in the fight." He said he was told by a lieutenant to sit in the car and be quiet.

He was taken to the 19 Precinct station house and told to wait. In the early hours of the next morning, he was subject to an official Department interview at which he was represented by sergeants Mulvey and Lubrano. The Respondent stated that he had also told Mulvey that he wanted to go to the hospital to receive medical attention because he did not feel well. Mulvey, he said, advised him to wait until after the interview so as not to appear uncooperative. They then discussed line-of-duty paperwork. The Respondent said that Mulvey went over to Lieutenant Rooney, the midnight platoon commander who said he would not do the paperwork. He said Lieutenant Materi and Captain Coyne, his supervisors in the Intelligence Division, were also present but he was unaware of any conversation Mulvey may have had with them. He knew that Mulvey came back and said that he and Lubrano would do the paperwork.

The Respondent testified that Mulvey and Lubrano prepared handwritten scratch copies which were signed and handed to him to have typed. The Respondent identified a photo of his left wrist as it appeared on December 18, 2008, (RX B). He also said he had pain in his back, right shoulder and leg. He eventually got treatment at [REDACTED] Medical Center. He did not go sick as a result of this incident. He explained that the purpose of filing the Line of Duty Injury Report was as a precaution in case something came up, to document the injuries he had received.

Examining the Line of Duty Injury Report (DX 1) the Respondent stated that he typed it up. Part C, he said, was prepared and signed by him. He believed the report was submitted to Health Services on December 26, 2008.

The Respondent stated that he typed up the witness statements in connection with his Line of Duty Injury Report and "the officers respectfully signed." DX 2A was signed by Probationary Police Officer Vladimir Espinal signed and DX 2B was signed by Probationary Police Officer Edwin Rodriguez. The Respondent said that the circumstances under which each of these officers signed was different and that he did not recall "which officer signed it here and which officer signed it there." He acknowledged that he personally gave these reports to the officers and requested that they sign them.

The Respondent testified that he based the information he put into the affidavits on a conversation he had while he was being held at the 19 Precinct. He identified a police officer named Virga as present as well as Rivera. The Respondent said he heard someone say that they could not believe that he was thrown down like that during the incident with Mazzilli.

The Respondent claimed that the officers who signed the affidavits did not have any reservations. He said he did not ask Virga to sign because he did not observe anything. He also said that he prepared a statement for an Officer Torres who reviewed it and said that was not what he had seen or testified to at his official Department interview. Torres, the Respondent said, did not sign and he said he told Torres that it was not a problem.

The Respondent testified that he has familiarity with line-of-duty paperwork. He said that his supervisors were present when Mulvey and Lubrano completed the forms.

He said Materi and Coyne were present at the hospital and that they had seen the two sergeants fill out the forms. He stated that the rules are more strictly adhered to when the injuries are serious. He said, "[O]n minor stuff like this it's a little bit more lax [sic]." He claimed that the actions in regard to his Line of Duty Injury Report were consistent with his experience over the years.

On cross-examination the Respondent indicated that he worked plainclothes assignment for the majority of his career, "I have 21 years so I would say at least 17, 16 of those years." He agreed that he had specialized training in working plainclothes assignments including safety issues. He acknowledged that some of the training dealt with police confrontations with particular reference to uniform encounters. He agreed that the training included various ways of letting other members of the service know that someone who is in plainclothes is an officer. He said the danger of these encounters was "obvious."

The Respondent stated that there are many ways for plainclothes officers to identify themselves and how to do it depends on the situation. Referring to the time he was struck in the head the Respondent said he did not know why he was struck as he was wearing the color of the day and had a precinct football jersey that said 33 Precinct on it. He agreed that in essence the reason he got hit was that the officer did not realize he was a police officer. The Respondent added that he had his shield out. He said the reason he had his shield out at that time was because his partner Perry was taking police action.

When asked if he was familiar with the section of the Patrol Guide which says the proper way to identify himself to other police officers is by using the identification card the Respondent indicated that he would have to read the section to make sure that it was

being read in proper context.

The Respondent indicated that he very rarely carries his gun while off duty. On December 17, 2008 he did not have his gun or shield. He agreed that he did have his identification card.

Going back to the encounter he had with a group of people, the Respondent testified that at first he thought they were civilians but it turned out that they were off-duty police officers. The Respondent asserted that at the time he did not know that. He acknowledged that he did not take his identification card out and he did not have his identification card out when he had the confrontation with Mazzilli. He identified himself, he said, verbally, by saying "I am a police officer."

The Respondent acknowledged with regard to the Line of Duty Injury Report that he received the scratch, handwritten copy from Lubrano and Mulvey and that he typed the form that was submitted. When asked if it was correct to say that he did more than just type the document, that he filled in "extra things" into the document, the Respondent said, "Yeah, I had to change it."

The Respondent agreed that with regard to the witness statements of Espinal and Rodriguez that were attached to the Line of Duty Injury Report, he had not only typed these forms but he composed them. He agreed that Espinal and Rodriguez did not give him a scratch to work from. He said he created the witness statements from what they had said.

With regard to the encounter with Mazzilli the Respondent agreed that he had touched his elbow. He said that to the best of his recollection he did that once, maybe twice. He stated that Mazzilli was facing away from him at the time. Specifically the

Respondent stated that Mazzilli was facing north towards the car stop and he approached Mazzilli from his rear.

On re-direct examination the Respondent testified that it did not appear to him that Mazzilli was involved with the car stop up the street and that he appeared to be doing nothing more than observing. He had not seen Mazzilli have any involvement with the car stop. He stated that he merely tapped him on the elbow.

FINDINGS AND ANALYSIS

The two specifications in Disciplinary Case No. 85738/09 arise out of an incident that occurred on the street outside and in the vicinity of the Vudu Lounge on the upper east side of Manhattan. Subsequently the Respondent filed paperwork regarding injuries he sustained in the aforementioned event. The two specifications in Disciplinary Case No. 85853/09 arise from the way that the Line of Duty Injury Report and supporting documentation were prepared.

Disciplinary Case No. 85738/09

Specification No. 1 of this case arises from an interaction between the Respondent, who was off duty, and Mazzilli who was on duty, in uniform and responding to a radio run regarding a disturbance at the Vudu Lounge late in the evening of December 17, 2008. That location had been the scene of a holiday party given by or for a number of probationary police officers from the Manhattan North Impact Response Team (IRT). The Respondent had been attending that party.

The disturbance which led to the response by on duty police officers was

mentioned, but not fully litigated, at this trial. Evidence provided by the Department focused on the events contained in the charges which involve only the interaction between the Respondent and Mazzilli.

The Respondent discussed the larger disturbance but did not provide a clear picture of what occurred. Indeed some of his testimony raised questions about his credibility.

For instance the Respondent acknowledges that he attended the holiday party at the Vudu Lounge. In describing his departure from the party he said he didn't remain because he did not know anyone that he could talk to yet he had been at the party, by his own testimony, for three or four hours. While the Respondent did indicate that he was essentially hanging out because he was planning on meeting other people later in the night, he also said he had spent time introducing himself to the officers there so that he could familiarize them with the work he did in Intelligence which included debriefing their prisoners. Indeed he was present when Captain Pla announced that the party was over. So apparently he was at the party for a substantial period of time and remained until a point in time at or near the end of the party.

The Respondent said that after leaving the party and while sitting in his car he noticed, in the rear view mirror, what looked like a man struck by a car. Then he realized the man was being attacked by someone by what he described as a two by four. At this point the Respondent's account becomes rather garbled. There was a crowd outside the Vudu Lounge that he said was also attacking the man. In his first account of this event he did not mention that the crowd was made up of off-duty police officers. Later in his testimony he stated that they were off-duty police officers but he did not know it at the

time. This is surprising given that he had been at a party with apparently these same officers, for several hours.

The Respondent testified that he disarmed the man with the two by four, threw it in a construction site, controlled the crowd and ushered the victim to safety.

The Respondent said he saw Captain Pla on the telephone, yet he is the only one, according to him, taking police action and he, according to his account, made no attempt to contact Pla or any of the other officers who should have been leaving the party at that point and should have been in the vicinity. Indeed within a very brief period of time, according to his account, the responding, on-duty officers were stopping a van full of off-duty officers from the party further up the block. If these were the same individuals who were in the crowd then the Respondent's version of events does not account for when or how they got in the van and up the block. The only conclusion this Court can come to is that the Respondent's testimony at this trial is not complete and does not give a reliable picture of what happened prior to his interaction with Mazzilli.

What is clear is that something did occur and the Respondent wanted to speak with Police Officer Mazzilli about something. The Respondent indicated that he wanted to tell Mazzilli what he knew about the incident but as will be seen there is at least some indication that is not exactly what he had in mind. In any event it is the Respondent's effort to get Mazzilli's attention that is the subject of these charges.

In assessing the facts of this case it is worth noting that both of these officers, the Respondent and Mazzilli, are long term members of the Department. Both have extensive experience with patrol work. Neither knew the other prior to the incident and therefore there is no reason to believe that what occurred was the result of any prior

untoward incident or antagonism between them. Moreover, whatever uncertainty there is in the record about what happened outside the Vudu Lounge the testimony from both sides is very close when it comes to describing what happened between the Respondent and Mazzilli.

Mazzilli responded to a call of an assault in progress at the Vudu Lounge, a place known for such disorderly events. The scene was chaotic and noisy with lots of traffic on the avenue.

Mazzilli testified that he was watching officers further north on First Avenue stopping a van full of people. His purpose, he said, was to make sure that the anti-crime officers stopping the vehicle were not in danger. The Respondent essentially does not dispute the fact that Mazzilli was watching the vehicle, indeed the problem arose because he had trouble getting Mazzilli attention.

There are some differences in the two versions of events but these are unimportant. For instance Mazzilli placed the van ten to twelve feet away while the Respondent claimed it was thirty to forty feet north of him.

This difference as to the distance between the versions is obviously the result of an exaggeration by one, the other, or both of these men. In the end, however, the distance is immaterial. Mazzilli was called to the scene of an incident at a location he said was known for disorders. He testified credibly that he was watching a van full of people being stopped by other on-duty officers. It is well known that a vehicle stop is also a potentially hazardous situation for officers, particularly when the stop involves a van full of people, late at night outside a location which sells alcoholic beverages and one in which there has been a disturbance. No matter who tells this story and no matter what the

distance Mazzilli was from the van, he was doing his job and the Respondent should have been aware of this.

The next thing that happened was that the Respondent came up toward Mazzilli from the rear and touched him to get his attention. The Respondent basically said he touched him once, perhaps twice, gently, on the elbow, while Mazzilli said he grabbed his arm three or four times. Here again one, the other, or both are exaggerating and again it does not make any difference. The Respondent was approaching an armed on-duty officer from behind.

There was, in this trial, some discussion of the applicability of Patrol Guide Section 212-33 entitled *Confrontation Situations*. Both sides have argued at one point or another that the Patrol Guide is just that, a guide. This Court concurs and section 212-33 should be read in that light. The section generally describes the civilian clothed officer as the “confronted officer” and states that, “It must be absolutely clear in the minds of all members of the service that in any confrontation, the burden of proving identity rests on the confronted officer whether on or off duty.”

The Respondent has argued that he is not technically the “confronted” officer and that he was in the shoes of a civilian trying to get an officer’s attention. This argument must fail. First of all the Respondent is not a civilian but a uniformed member of the Department with special knowledge, understanding and responsibilities which he carries with him at all times. Additionally he claims to have advised Mazzilli that he is a police officer and his purpose was purportedly to advise Mazzilli of police action he had taken. The Respondent thus cannot have it both ways and in the end he is a member of the service and bound by its rules. The term “confronted officer” is simply a shorthand way

of describing the person in plainclothes who is not obviously a member of the service involved in an interaction with on duty members of the service. The Respondent was, in the circumstance with Mazzilli, the confronted officer.

To Mazzilli, the Respondent must have appeared to be a civilian. The Respondent, who has served as a police instructor in New York and in Iraq should be amply aware that a civilian approaching an officer from the rear could be not only a distraction but a threat. It is incumbent upon the officer in civilian clothes to make it clear that he is a member of the service. This is at the heart of Patrol Guide 212-33. Further it is very easy for someone to claim to be a police officer and even a shield can be duplicated. The identification card offers an almost foolproof way of identifying a member of the service. This too is part of Patrol Guide 212-33 which asserts that the identification card is the primary form of identification and must always be carried. The Respondent acknowledged that he had his identification card and never displayed it.

What is particularly remarkable about this case is that the most compelling evidence to demonstrate that the Respondent's conduct in approaching Mazzilli was improper came from the Respondent himself. During his testimony the Respondent provided several examples, from his own experience, demonstrating how dangerous and difficult the interaction between plainclothes officers and uniformed officers can be. One of these situations resulted in the Respondent looking down the barrel of a gun which was, as he described it, a few inches from his face. In another situation he said he was "pistol whipped" by an on-duty officer.

He explained how shortly after that alleged pistol whipping when another confrontation arose he took extra measures of caution to advise uniformed officers that he

was a member of the service and he also demonstrated how many times he had to announce that fact to get through to on-duty officers that he really was a cop. If anything these incidents should have made the Respondent extremely aware of how easily a mistake can be made.⁵

There is one other issue that the Respondent raised and that is his claim that he verbally advised Mazzilli that he is a member of the service by stating "I'm a cop." Mazzilli denies that he made this statement. Here we have a situation where one or the other is not being candid or we have a situation where the Respondent said something but Mazzilli did not hear it. Given the circumstances this is certainly possible. Mazzilli was very nervous about the Respondent's behavior. We know this from the Respondent who said that when Mazzilli turned to him the first thing he did was order him to remove his hands from his pockets. The only reason for this could be his concern that the man who was coming up from behind him had a weapon. At that point in time, with his attention focused on the situation around him, Mazzilli just might not have heard what the Respondent was saying or, put another way, what the man (the Respondent) was saying did not register.

There is other evidence that verbal communication with on-duty officers, in the midst of police action, is not always understood and it comes again from the Respondent himself. In his recounting of prior encounters when he was in plainclothes he tells by demonstration how many times he had to repeat himself to be understood. In one instance he recalled that even after he had taken extensive measure, verbal and otherwise, to identify himself, his partner wound up being subject to police action and apparently

⁵ The Respondent's accounts of these events are worthy of note and for that reason they are set forth verbatim in the summary of the Respondent's testimony earlier in this decision.

nearly injured.⁶ These stories make clear that officers in the middle of police action do not always realize that someone has identified themselves as an officer.

On this issue of whether the Respondent identified himself verbally to Mazzilli, the Respondent offered several additional pieces of evidence. RX A is a stipulation between the parties indicating what Officers Jeremias Torres, Raymond Curbelo and Joseph Rivera would testify to had they been called as witnesses during this trial. DX 2A is the witness statement submitted in connection with the Respondent's Line of Duty Injury Report prepared by then-Probationary Police Officer Vladimir Espinal. Espinal also testified as a witness for the Respondent at this trial. DX 2B⁷ is the witness statement of then-Probationary Police Officer Edwin Rodriguez.⁸

All of these men were probationary officers at the time of the incident and were in the van which was being stopped. All of them testified to the fact they heard the Respondent identify himself as a member of the service to Mazzilli either by saying he was a cop or a sergeant on the job. There are unfortunately numerous issues related to these statements.

First and foremost is that Espinal, who testified as the Respondent's witness at this trial disavowed most of what he said in the witness statement during his testimony in this trial. Thus while his witness statement asserts that after the Respondent identified himself as a member of the service Mazzilli told him that, "he did not give a fuck that the SGT. was a police officer." Espinal heard no such statement. The stipulation regarding Torres, Curbelo and Rivera contain no claim that Mazzilli acknowledged that he knew

⁶ In this particular instance the Respondent testified that in addition to verbal communication he wrapped his police issue radio in the color of the day.

⁷ DX 2A and 2B are the subject matter of Specification No. 2 of Disciplinary Case No. 85853/09.

⁸ Rodriguez did not testify at this trial.

the Respondent was a cop and did not care. The only other statement containing the claim that Mazzilli made such a statement is in the witness statement of Rodriguez (DX 2B) which was prepared by the Respondent and is remarkably similar to the discredited claim in the Espinal statement prepared by the Respondent (including the unique spelling of sergeant as SGT).⁹

Rodriguez did not testify at this trial. Based on the retraction of the claim by Espinal and the fact that none of the other officers mention Mazzilli making such a statement the only conclusion this Court can come to is that Mazzilli did not make such a statement.

The Court does not doubt that the Respondent stated that he was a member of the service in some form or other. As noted above this Court is also satisfied that under the circumstances these statements did not register with Mazzilli and as a practical matter he did not hear them.

Incidentally the statement of Torres, Curbelo and Rivera amplify the danger and complexity of the situation that Mazzilli was monitoring. The vehicle was not merely being stopped but officers had ordered the potentially armed men in the van out and were having them place their hands on the side of the vehicle.

Specification Number 1 alleges that the Respondent “did fail and neglect to immediately and properly identify himself as a member of service to responding police officers.” Because the Respondent failed to effectively communicate to Mazzilli that he was a police officer the Respondent is found Guilty of Specification No. 1.

Specification No. 2 charges that the Respondent “improperly interfered with on

⁹ The statement there reads, “PO Mazzilli stated that he did not give a fuck who the SGT was and began to handcuff the SGT.”

duty responding members of the service investigating a police incident.”

The Respondent testified that he saw what he believed to be an assault wherein one person attacked another with a two by four who was then accosted by a group of people. His testimony was that he wanted to convey to Mazzilli what he knew. Two defense witnesses conveyed what may be a somewhat different version of what the Respondent was trying to tell Mazzilli. In his testimony before this Court, Espinal stated that the Respondent told Mazzilli “that these guys are ok, they are on the job, they are cops.” Torres, in his stipulated statement, affirms that that is what the Respondent said.

It is certainly one thing to tell a responding officer about a crime that has been committed and quite another to vouch for people being stopped by those responding officers. Indeed these individuals were suspects because, as Mazzilli reports, someone identified the people in the van as “getting away” and the Respondent indicated that the crowd of attackers were off duty police officers. In the first scenario the information being conveyed would help the police investigation. In the second scenario the information being conveyed might be an attempt to improperly protect brother officers.

Whatever the Respondent’s intent, Mazzilli testified that he did not deal with the Respondent until he was satisfied that the anti-crime officers were no longer in danger. That means he had completed his initial police task and was not interfered with by the Respondent. Further the specification claims that the Respondent interfered with an investigation and it has offered no evidence or argument to explain what investigation he interfered with or how he accomplished that interference. The Respondent is found Not Guilty of Specification No. 2.

Disciplinary Case No. 85853/09

Specification No. 1 charges the Respondent with “wrongfully completed the Investigating Supervisor sections ‘A’ and ‘B’ of a Line of Duty Injury Report for injuries that he allegedly sustained during a police incident.”

It is not disputed that Sergeant Lubrano who signed off on part A, and Sergeant Mulvey who signed off on part B, completed a scratch copy in longhand which the Respondent typed up. They then signed off on the typed form which was filed with the Department. The act of typing up the scratch copies is a ministerial act. Section A and B of these forms were in fact “completed” when the respective sergeants signed off on them.

There is a credible claim that the language of the scratch was somewhat different from the final typed version. Both Lubrano and Mulvey stated that the word “large” was added in front of the word “abrasion” in the typed final copy. The claim is particularly credible because the abrasion, seen in the photo of the Respondent’s injury (RX B) is not large and the Respondent appears to admit to changing the typed copy. That may be so, but it was the responsibility of the signers, Mulvey and Lubrano, to make sure that text they signed off on was correct. If the Respondent broke a trust by changing the language when he typed these forms up, that conduct is not charged. The Respondent is found Not Guilty of Specification No. 1 as charged.

Specification No. 2 alleges that the Respondent “improperly prepared his own Witness Statement Injury to Member of the Department forms, and submitted said forms to several probationary police officers to sign.” This is quite a different matter. The Respondent, a sergeant with many years of experience, presented a form to two separate

probationary police officers to sign. The pressure to sign the form is palpable, indeed, not surprisingly Espinal, who recalled that the Respondent tried to help him when the van was stopped, said he felt pressured to sign the form. Indeed he considered it essentially an order to sign the form. More significantly Espinal testified that he did not see any struggle between the Respondent and Mazzilli, did not see the Respondent in handcuffs and did not hear Mazzilli make any comment to the Respondent. All of this is in direct contradiction to what was in the form the Respondent presented to him to sign.

The conduct of the Respondent in preparing witness statements for his own Line of Duty Injury Report and then presenting them as a *fait accompli* to two very junior members of the Department is inappropriate conduct and the Respondent is found Guilty of Specification No. 2.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined, see *Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on July 5, 1989. Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

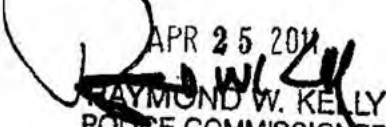
The Respondent has been found guilty of failing to properly identify himself at a police incident and of having improperly completed affidavits in support of his Line of Duty Injury Report.

The Respondent, by his own testimony, should have been very aware of the potential problems presented by the situation in which he was approaching an on-duty

officer. His failure to communicate effectively created an avoidable conflict between himself and another member of the service.

The Respondent's act of preparing two virtually identical witness statements, typing them up and presenting them to two junior and probationary members of the Department to sign, constituted what in essence is a conflict of interest. These forms were not only relevant to the Line of Duty Injury Report, but the Respondent was placed on modified assignment hours after the incident. He knew or should have known that he would face Departmental charges and these statements might constitute evidence. It certainly put undo pressure on these officers. Moreover, at least one of these forms was confirmed to be materially false. This therefore constitutes serious misconduct.

The Respondent has a long career in this Department and has been recognized on many occasions for good police work which is well documented in the exhibits before this Court (see RX C and D, as well as the confidential memorandum annexed hereto). This should certainly be considered in assessing a penalty in this case. Considering that, as well as the serious nature of these charges, this Court recommends a penalty involving the loss of 30 vacation days.

APPROVED
APR 25 2011

RAYMOND W. KELLY
POLICE COMMISSIONER

Respectfully submitted,


Martin G. Karopkin
Deputy Commissioner – Trials

POLICE DEPARTMENT
CITY OF NEW YORK

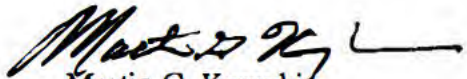
From: Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
SERGEANT ANTHONY ACOSTA
TAX REGISTRY NO. 895154
DISCIPLINARY CASE NOS. 85738/09 & 85853/09

In 2009, the Respondent received an overall rating of 4.0 “Highly Competent” on his annual performance evaluation. He was rated 4.5 “Extremely Competent/Highly Competent” on his two previous evaluations. He has been awarded 72 medals: 49 for Excellent Police Duty, 15 for Meritorious Police Duty, five Commendations, one for Exceptional Merit, one Honorable Mention, and one Medal for Valor. [REDACTED]

[REDACTED] In January 2010, he was placed on Level II Discipline Monitoring as a result of the pending cases.

The Respondent has been the subject of two prior disciplinary adjudications. In 1995, [REDACTED]
[REDACTED]. In 1997, he was charged with using excessive force. He pleaded Nolo Contendere and forfeited five vacation days.

For your consideration.


Martin G. Karopkin
Deputy Commissioner – Trials